

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.,

Complainants,

— vs. —

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV,

Respondents.

COMPLAINANTS' MOTION FOR ENTRY OF DECISION ON DEFAULT

Pursuant to 46 C.F.R. §§ 502.6, 502.62, and 502.65, and 28 U.S.C. § 1746, Complainants, through their counsel, Marcus A. Nussbaum, Esq., hereby file this Motion for an Order: 1) Striking the Answer of Respondents MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV (individually and collectively, “Respondents”); 2) prohibiting Respondents from supporting their defenses, and precluding Respondents from introducing documents into evidence; and 3) entering an Initial Decision in this matter on default or respondents. In the alternative, and should the Presiding Officer Order Respondents to file Verifications that comply with the Commission’s Rules of Practice and Procedure, complainants request that the Presiding Officer amend the deadlines set forth in the Initial Order accordingly to begin from the date of service of respondents’ corrected Verifications.

NATURE OF THE CASE

This action arises out of Respondents' numerous violations of the Shipping Act of 1984, 46 U.S.C. §40101 et seq., in that after Respondents were hired to ship Complainants' automobiles from a warehouse operated by MTL in the United States to various locations abroad respondents instead, among other things, released complainants' cargo to third parties, detained said cargo, misdelivered said cargo, and in one instance, destroyed two automobiles and cutting them in half.

RELEVANT PROCEDURAL HISTORY

On July 17, 2020, complainants filed their Complaint in the instant matter (Document 1). On or about August 6, 2020, the Commission served upon respondents a Notice of Filing of Complaint and Assignment (Document 2). The Initial Order was served on August 7, 2020 (Document 4). On or about August 27, 2020 counsel for respondents filed respondents' Notice of Appearance (Document 6) and their Answer, which is defective for reasons set forth herein (Document 7).

On September 2, 2020 and September 10, 2020, the undersigned attempted to confer in good faith with respondents' counsel regarding the defective Verifications attached to respondents' Answer. Copies of those emails, together with the Verifications themselves are annexed hereto as Appendix "1" and "2". Per the parties' emails and despite the fact that the verifications are undated, it is respondents' position that the Verifications are "...in full compliance with 46 C.F.R. Sec. 502.6". Respondents are mistaken and the defective filing was not made in error, but rather for causing complainants to incur additional attorneys' fees (all of which shall be recovered from respondents at the conclusion of this action).¹ To the extent that respondents have yet to serve a

¹ We note briefly here that the instant motion was necessitated due to the undersigned counsel's history of litigation with respondents in other matters both before the Commission and in Federal Court where respondents have in bad faith refused to comply with their obligations under the Commission's Rules as well as the Federal Rules of Civil Procedure. Respondents' refusal to willingly correct a simple defect in their verifications is a continuation of this disregard for the judicial process.

Verified Answer in compliance with the Commission's Rules of Practice and Procedure, it is respectfully submitted that the dates and deadlines set forth in the Initial Order for discovery, a Status Report, and a conference with CADRS should be amended in the event that the Presiding Officer orders respondents to correct the deficiencies described herein.

ARGUMENT

The Verifications are Undated, and are a Hybrid of Affidavit and Unsworn Declaration

Standard of Review

46 C.F.R. § 502.6

46 C.F.R. § 502.6 reads, in relevant part, as follows:

Wherever, under any rules of this part, any matter is required or permitted to be supported, evidenced, established, or proved by the sworn declaration, verification, certificate, statement, oath, or affidavit, in writing of the person making the same...such matter may, with like force and effect, be supported, evidenced, established, or proved by the unsworn declaration, certificate, verification, or statement, in writing of such person which is subscribed by such person, as true under penalty of perjury, in substantially the following form:

- (1) If executed without the United States: "I declare (or certify, verify, or state) under penalty of perjury under the laws of the United States of America that the foregoing is true and correct."
- (2) If executed within the United States, its territories, possessions, or commonwealths: "I declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct."

46 C.F.R. § 502.62

46 C.F.R. § 502.62 reads, in relevant part, as follows:

Contents of answer. The answer must be verified...

Effect of failure to file answer. (i) Failure of a party to file an answer to a complaint...within the time provided will be deemed to constitute a waiver of that party's right to appear and contest the allegations of the complaint...to which it has not filed an answer and to authorize the

presiding officer to enter an initial decision on default as provide for in 46 CFR 502.65. Well pleaded factual allegations in the complaint not answered or addressed will be deemed to be admitted.

46 C.F.R. § 502.65

46 C.F.R. § 502.65 reads, in relevant part, as follows:

A party to a proceeding may be deemed to be in default if that party fails:

- (1) To appear, in person or through a representative, at a hearing or conference of which that party has been notified;
- (2) To answer, to respond to a dispositive motion within the time provided, or otherwise to defend the proceeding; or
- (3) To cure a deficient filing within the time specified by the Commission or the presiding officer.

When a party is found to be in default, the Commission or the presiding officer may issue a decision on default upon consideration of the record, including the complaint or Order of Investigation and Hearing.

28 U.S.C. § 1746

28 U.S.C. § 1746 reads, in relevant part, as follows:

Wherever, under any law of the United States or under any rule, regulation, order, or requirement made pursuant to law, any matter is required or permitted to be supported, evidenced, established, or proved by the sworn declaration, verification, certificate, statement, oath, or affidavit, in writing of the person making the same...such matter may, with like force and effect, be supported, evidenced, established, or proved by the unsworn declaration, certificate, verification, or statement, in writing of such person which is subscribed by him, as true under penalty of perjury, and dated, in substantially the following form:

- (1) If executed without the United States: “I declare (or certify, verify, or state) under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. Executed on (date). (Signature)”.
- (2) If executed within the United States, its territories, possessions, or commonwealths: “I declare (or certify, verify, or state) under penalty of perjury that the foregoing is true and correct. Executed on (date). (Signature)”.

The Verifications Attached to Respondents' Answer Run Afoul of The Commission's Rules and Other Federal Statutes

As the Presiding Officer can see, what respondents have attempted to do is submit Verifications which bear a notary stamp, but at the same time are undated, and do not contain a jurat (but rather recite a version of the unsworn declaration language recited in Rule 6 of the Commission's Rules of Practice and Procedure and in 28 U.S.C. § 1746). Essentially, the Verifications are neither here nor there and run afoul of the Commission's Rules, Federal Statute, and any known state law governing the form of a jurat on a notarized document. The verifications in their current form leave reader to simply speculate when and (in light of the notarization) where they were executed, and exist in a state of limbo, neither committing to a specific form of the above three standards, and at the same time running afoul of all three standards.

After having had the opportunity to correct this issue and in declining to do so, respondents' Answer should now be stricken as defective and an Initial Order should be entered on default. See, e.g., Cada v. Baxter Healthcare Corp., 920 F.2d 446, (7th Cir. 1990), *cert. denied*, 501 U.S. 1261, 111 S. Ct. 2916 (1991) (where affidavit was not notarized at time it was filed, such that affiant was not subject to perjury penalties, affidavit was not within range of evidence that court could consider on motion for reconsideration); Lentz v. Spanky's Rest. II, Inc., 491 F. Supp. 2d 663 (N.D. Tex. 2007) (undated jurat attached to plaintiff's affidavit in Fair Labor Standards Act suit was disregarded by district court in deciding to deny plaintiff's motion for notice to potential class members under 29 USCS § 216(b), because it was invalid as 28 USCS § 1746 declaration).

RELIEF REQUESTED

Complainants request that the Presiding Officer issue an Order: 1) Striking the Answer of Respondents MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV (individually and collectively, "Respondents"); 2) prohibiting Respondents from

supporting their defenses, and precluding Respondents from introducing documents into evidence; and 3) entering an Initial Decision in this matter on default or respondents. In the alternative, and should the Presiding Officer Order Respondents to file Verifications that comply with the Commission's Rules of Practice and Procedure, complainants request that the Presiding Officer amend the deadlines set forth in the Initial Order accordingly to begin from the date of service of respondents' corrected Verifications.

CONCLUSION

As set forth above, and as of the time of this writing, Respondents have failed to produce verifications committing to a specific form of the above three standards.

Additionally, and despite multiple 'good faith' attempts by Complainants to 'meet and confer' with Respondents' counsel to cure these deficiencies respondents have willfully, contumaciously, and intentionally "refused" to do so.

Consequently, Complainants are now compelled to bring on their instant motion for an Order: 1) Striking the Answer of Respondents MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV (individually and collectively, "Respondents"); 2) prohibiting Respondents from supporting their defenses, and precluding Respondents from introducing documents into evidence; and 3) entering an Initial Decision in this matter on default or respondents.

WHEREFORE, it is respectfully requested that the Presiding Officer now grant Complainants' instant motion in its entirety, together with such other and further relief as the Presiding Officer may deem just and proper under the circumstances.

Dated: September 16, 2020
Brooklyn, New York

Respectfully Submitted,

/s Marcus Aurelius Nussbaum

Marcus A. Nussbaum, Esq.

David Treyster, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: 201-956-7071

Fax: 347-572-0439

Attorney for Complainants

marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR ENTRY OF DECISION ON DEFAULT** upon Respondents' Counsel at the following address:

Garry Pogil, Esq.
112 West 34 Street, 18 Floor
New York, NY 10120

by first class mail, postage prepaid, and by email to: garry.pogil@gmail.com.

/s Marcus Aurelius NUssbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 201-956-7071
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
September 16, 2020

APPENDIX “1”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

Re: Notice of Appearance & Verified Answer (Docket No. 20-12)

Marcus Nussbaum <marcus.nussbaum@gmail.com>

Wed, Sep 2, 2020 at 9:03 PM

To: Garry Pogil <garry.pogil@gmail.com>

Garry,

I hope this email finds you well.

In the spirit of conferring on issues before involving the Presiding Officer, we note that the Verifications attached to the answer are defective, and are undated and also fail to indicate the place of notarization.

Please provide the corrected Verifications by close of business on Friday.

Thank you for your prompt attention to this matter.

Regards,

Marcus A. Nussbaum, Esq.

On Thu, Aug 27, 2020 at 9:26 AM <garry.pogil@gmail.com> wrote:

Good morning:

Please find attached my Notice of Appearance and the Verified Answer with respect to Docket No. 20-12, on behalf of the Respondents: Marine Transport Logistics, Inc., Alla Solovyeva, and Raya Bakhirev.

Sincerely,

Garry Pogil, Esq

1120 Avenue of the Americas

4th Floor

New York, NY 10036

212-626-6825 / 917-593-1466



Marcus Nussbaum <marcus.nussbaum@gmail.com>

**Nnabugwu Chinedu Andrew et al. v. Marine Transport Logistics, Inc. et al. - - FMC
Docket No.: 20-12**

Marcus Nussbaum <marcus.nussbaum@gmail.com>

Thu, Sep 10, 2020 at 9:30 PM

To: Garry Pogil <garry.pogil@gmail.com>

Garry, please see the attached letter for your attention on the issue of Initial Disclosures and your clients' defective Verifications. While we still have not yet sought Judicial intervention, we intend to do so absent your clients' immediate remedy of the defects.

Please consider this complainants' final good-faith effort to confer on this issue.

Additionally, please advise as to a time frame on which you are available to participate in a conference tomorrow with the Commission's Office of Consumer Affairs and Dispute Resolution Services so that we schedule accordingly.

We look forward to hearing from you.

Marc

Regards,

Marcus A. Nussbaum, Esq.



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APPENDIX “2”

Verification

I, Alla Solovyeva, as the President of the Marine Transport Logistics, Inc., have read the foregoing Verified Answer with Affirmative Defenses and know the contents thereof, and the same are true to the best of my knowledge, except for those matter therein which are stated to be alleged upon information and belief, and as to such matters, I believe them to be true.

I declare under penalty of perjury that the foregoing is true and correct.

Dated:

Alla Solovyeva

Alla Solovyeva

Oksana Khanzhina

Notary Public



Verification

I, Raya Bakhirev, have read the foregoing Verified Answer with Affirmative Defenses and know the contents thereof, and the same are true to the best of my knowledge, except for those matter therein which are stated to be alleged upon information and belief, and as to such matters, I believe them to be true.

I declare under penalty of perjury that the foregoing is true and correct.

Dated:

Baxh

Raya Bakhirev

Oksana Khanzhina

Notary Public

